

|                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                      |                                                                |                                       |
|---------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------|----------------------------------------------------------------|---------------------------------------|
| <b>REQUEST FOR QUOTATION</b><br>(THIS IS NOT AN ORDER)                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | THIS RFQ <input type="checkbox"/> IS <input checked="" type="checkbox"/> IS NOT A SMALL BUSINESS SET-ASIDE                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                      | PAGE 1 OF 26 PAGES                                             |                                       |
| 1. REQUEST NUMBER<br>1333MF26Q0020                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 2. DATE ISSUED<br>04/27/2026                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                      | 3. REQUISITION/PURCHASE REQUEST NUMBER                         |                                       |
| 5a. ISSUED BY<br>NMFS Field Delegates<br>601 EAST 12TH STREET SUITE 1746<br>KANSAS CITY MO 64106                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 4. CERT. FOR NAT. DEF.<br>UNDER BDSA REG. 2<br>AND/OR DMS REG. 1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                      | RATING                                                         |                                       |
| 5b. FOR INFORMATION CALL (NO COLLECT CALLS)                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 6. DELIVER BY (Date)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                      |                                                                |                                       |
|                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 7. DELIVERY<br><input checked="" type="checkbox"/> FOB DESTINATION <input type="checkbox"/> OTHER (See Schedule)                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                      |                                                                |                                       |
| NAME<br><br>RAYNIER CAMERINO                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | TELEPHONE NUMBER<br>AREA CODE NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                      | 9. DESTINATION                                                 |                                       |
| 8. TO:                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | a. NAME OF CONSIGNEE<br>OFFICE OF MANAGEMENT & BUDGET                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                      |                                                                |                                       |
| a. NAME                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | b. COMPANY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                      | b. STREET ADDRESS<br>1315 EASTWEST HWY<br>/F/MB SSMC3 RM 14451 |                                       |
| c. STREET ADDRESS                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | c. CITY<br>SILVER SPRING                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                      |                                                                |                                       |
| d. CITY                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | e. STATE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                      | f. ZIP CODE                                                    |                                       |
|                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | MD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                      | 20910                                                          |                                       |
| 10. PLEASE FURNISH QUOTATIONS TO THE<br>ISSUING OFFICE IN BLOCK 5a ON OR<br>BEFORE CLOSE OF BUSINESS (Date)<br><br>05/12/2026 1700 ED |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | IMPORTANT: This is a request for information and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or service. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotation must be completed by the quoter. |                                                      |                                                                |                                       |
| <b>11. SCHEDULE (Include applicable Federal, State and local taxes)</b>                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                      |                                                                |                                       |
| ITEM NUMBER<br>(a)                                                                                                                    | SUPPLIES/SERVICES<br>(b)                                                                                                                                                                                                                                                                                                                                                                                                                               | QUANTITY<br>(c)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | UNIT<br>(d)                                          | UNIT PRICE<br>(e)                                              | AMOUNT<br>(f)                         |
|                                                                                                                                       | NOTICE: THE GOVERNMENT DOES NOT ACCEPT RESPONSIBILITY FOR NON-RECEIPT OF QUOTES. IT IS THE CONTRACTOR'S RESPONSIBILITY TO REQUEST A CONFIRMATION OF THE QUOTE RECEIPT.<br><br>UNIQUE ENTITY ID _____<br><br>CAGE CODE _____<br><br>OFFEROR MAY SUBMIT THE QUOTE ON THIS SF-18 FORM OR THEIR OWN COMPANY FORM.<br><br>QUOTES WILL BE EVALUATED BASED ON (RFO 52.212-2) IN ATTACHED CLAUSES & PROVISIONS. VENDORS WHO DO NOT PROVIDE<br><br>Continued... |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                      |                                                                |                                       |
| 12. DISCOUNT FOR PROMPT PAYMENT                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                        | a. 10 CALENDAR DAYS (%)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | b. 20 CALENDAR DAYS (%)                              | c. 30 CALENDAR DAYS (%)                                        | d. CALENDAR DAYS<br>NUMBER PERCENTAGE |
| NOTE: Additional provisions and representations <input type="checkbox"/> are <input type="checkbox"/> are not attached.               |                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                      |                                                                |                                       |
| 13. NAME AND ADDRESS OF QUOTER                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION |                                                                | 15. DATE OF QUOTATION                 |
| a. NAME OF QUOTER                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 16. SIGNER                                           |                                                                | b. TELEPHONE<br>AREA CODE             |
| b. STREET ADDRESS                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                      |                                                                |                                       |
| c. COUNTY                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | a. NAME (Type or print)                              |                                                                |                                       |
| d. CITY                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | e. STATE                                             |                                                                | f. ZIP CODE                           |
|                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | c. TITLE (Type or print)                             |                                                                | NUMBER                                |

|                           |                                           |              |
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NAME OF OFFEROR OR CONTRACTOR

| ITEM NO.<br>(A) | SUPPLIES/SERVICES<br>(B)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | QUANTITY<br>(C) | UNIT<br>(D) | UNIT PRICE<br>(E) | AMOUNT<br>(F) |
|-----------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------------|-------------------|---------------|
|                 | <p>ALL EVALUATION CRITERIA WILL NOT BE ACCEPTED.</p> <p>THE OFFEROR MUST BE CURRENTLY REGISTERED IN THE SYSTEM FOR AWARD MANAGEMENT (SAM) TO BE ELIGIBLE FOR AN AWARD.</p> <p>QUOTES RECEIVED FROM CONTRACTORS WHO ARE NOT ACTIVE IN SAM WILL NOT BE CONSIDERED.</p> <p>UNRESTRICTED AND OPEN TO ALL SOURCES, FIRM-FIXED PRICE PURCHASE ORDER TO BE AWARDED TO THE TRADE-OFF QUOTE.<br/>Period of Performance: 06/15/2026 to 06/14/2027</p>                                                                                                                                                                                |                 |             |                   |               |
| 0001            | <p>CLIN 0001 - Base Year</p> <p>Services, non-personal, to provide all labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2026 to 06/14/2027.</p> <p>Product/Service Code: F999</p>                                                                                                                                            |                 |             |                   |               |
| 1001            | <p>CLIN 1001 - Option Year 1</p> <p>Continue services, non-personal, to provide all labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2027 to 06/14/2028.</p> <p>(Option Line Item)</p> <p>Anticipated Exercise Date: 06/10/2027</p> <p>Product/Service Code: F999</p> <p>Period of Performance: 06/15/2027 to 06/14/2028</p> |                 |             |                   |               |
| 2001            | <p>CLIN 2001 - Option Year 2</p> <p>Continue services, non-personal, to provide all</p> <p>Continued...</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                 |             |                   |               |

|                           |                                           |              |
|---------------------------|-------------------------------------------|--------------|
| <b>CONTINUATION SHEET</b> | REFERENCE NO. OF DOCUMENT BEING CONTINUED | PAGES        |
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NAME OF OFFEROR OR CONTRACTOR

| ITEM NO.<br>(A) | SUPPLIES/SERVICES<br>(B)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | QUANTITY<br>(C) | UNIT<br>(D) | UNIT PRICE<br>(E) | AMOUNT<br>(F) |
|-----------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------------|-------------------|---------------|
|                 | <p>labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2028 to 06/14/2029.<br/>(Option Line Item)<br/>Anticipated Exercise Date: 06/10/2028<br/>Product/Service Code: F999</p> <p>Period of Performance: 06/15/2028 to 06/14/2029</p>                                                                               |                 |             |                   |               |
| 3001            | <p>CLIN 3001 - Option Year 3<br/>Continue services, non-personal, to provide all labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2029 to 06/14/2030.<br/>(Option Line Item)<br/>Anticipated Exercise Date: 06/10/2029<br/>Product/Service Code: F999</p> <p>Period of Performance: 06/15/2029 to 06/14/2030</p> |                 |             |                   |               |
| 4001            | <p>CLIN 4001 - Option Year 4<br/>Continue services, non-personal, to provide all labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2030 to 06/14/2031.<br/>(Option Line Item)<br/>Anticipated Exercise Date:<br/>Product/Service Code: F999<br/>Continued...</p>                                                  |                 |             |                   |               |

| ITEM NO.<br>(A) | SUPPLIES/SERVICES<br>(B)                        | QUANTITY<br>(C) | UNIT<br>(D) | UNIT PRICE<br>(E) | AMOUNT<br>(F) |
|-----------------|-------------------------------------------------|-----------------|-------------|-------------------|---------------|
|                 | Period of Performance: 06/15/2030 to 06/14/2031 |                 |             |                   |               |

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## Section II - Supplies or Services and Price/Costs

### CLIN List

| Item Number | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Quantity | Unit | Unit Price | Amount |
|-------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001        | <p>CLIN 0001 – Base Year</p> <p>Services, non-personal, to provide all labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2026 to 06/14/2027.</p> <p>Award Type: Firm-fixed-price<br/>Product/Service Code: F999</p>                                                                                                                                         |          |      |            |        |
| 1001        | <p>CLIN 1001 – Option Year 1</p> <p>Continue services, non-personal, to provide all labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2027 to 06/14/2028.</p> <p>Award Type: Firm-fixed-price</p> <p>(Option Line Item)</p> <p>Anticipated Exercise Date: 06/10/2027<br/>Product/Service Code: F999<br/>Period of Performance: 06/15/2027 to 06/14/2028</p> |          |      |            |        |
| 2001        | <p>CLIN 2001 - Option Year 2</p> <p>Continue services, non-personal, to provide all labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the</p>                                                                                                                                                                                                                                                                                                                     |          |      |            |        |

| Item Number | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Quantity | Unit | Unit Price | Amount |
|-------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
|             | United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2028 to 06/14/2029.<br>Award Type: Firm-fixed-price<br><br>(Option Line Item)<br><br>Anticipated Exercise Date: 06/10/2028<br>Product/Service Code: F999<br>Period of Performance: 06/15/2028 to 06/14/2029                                                                                                                                                                                                                                                                                                                               |          |      |            |        |
| 3001        | CLIN 3001 - Option Year 3<br>Continue services, non-personal, to provide all labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2029 to 06/14/2030.<br><br>Award Type: Firm-fixed-price<br><br>(Option Line Item)<br><br>Anticipated Exercise Date: 06/10/2029<br>Product/Service Code: F999<br>Period of Performance: 06/15/2029 to 06/14/2030 |          |      |            |        |
| 4001        | CLIN 4001 - Option Year 4<br>Continue services, non-personal, to provide all labor, equipment, and materials (unless otherwise provided herein) necessary for 24-hour, 7-day-a-week (24/7) chemical emergency response and telephone number for Hazardous Materials/Dangerous Goods Shipping on NMFS ships throughout the United States and overseas, in accordance with the Statement of Work. Period of Performance 06/15/2030 to 06/14/2031.<br>Award Type: Firm-fixed-price<br><br>(Option Line Item)<br><br>Anticipated Exercise Date:<br>Product/Service Code: F999                                                                   |          |      |            |        |

| Item<br>Number | Description                                        | Quantity | Unit | Unit Price | Amount |
|----------------|----------------------------------------------------|----------|------|------------|--------|
|                | Period of Performance: 06/15/2030 to<br>06/14/2031 |          |      |            |        |



## Section III - Description/Specifications

### SOW Statement of Work

#### STATEMENT OF WORK

**National Oceanic and Atmospheric Administration (NOAA)**

**NOAA FISHERIES**

**Office of Management and Budget**

**Office of Facilities, Safety, and Logistics**

**NMFS Wide Chemical Emergency Response**

#### Background/Overview:

The U.S. Department of Transportation 49 CFR 172.604 requires the National Marine Fisheries Service (NMFS), a geographically dispersed scientific organization, to provide a 24-hour, 7 days a week (24/7) emergency response service and telephone number with any hazardous materials on NMFS's ships throughout the United States and overseas. Unless exempted, hazardous materials / dangerous goods shipping paper must contain an emergency response phone number. Since NMFS frequently ships hazardous materials throughout the United States and internationally, having this capability is essential to ensure NMFS is in compliance with applicable federal regulations.

U.S. Department of Transportation 49 CFR 172.604 regulation specifically states, "(a) A person who offers a hazardous material for transportation must provide a numeric emergency response telephone number, including the area code, for use in an emergency involving the hazardous material. For telephone numbers outside the United States, the international access code or the "+" (plus) sign, country code, and city code, as appropriate, that are needed to complete the call must be included. The telephone number must be -

(1) Monitored at all times the hazardous material is in transportation, including storage incidental to transportation;

(2) The telephone number of a person who is either knowledgeable of the hazardous material being shipped and has comprehensive emergency response and incident mitigation information for that material, or has immediate access to a person who possesses such knowledge and information. A telephone number that requires a call back (such as an answering service, answering machine, or beeper device) does not meet the requirements of paragraph (a) of this section; and

(3) Entered on a shipping paper, as follows:

(i) Immediately following the description of the hazardous material required by subpart C of this part; or  
 (ii) Entered once on the shipping paper in the manner prescribed in paragraph (b) of this section in a prominent, readily identifiable, and clearly visible manner that allows the information to be easily and quickly found, such as by highlighting, use of a larger font or a font that is a different color from other text and information, or otherwise setting the information apart to provide for quick and easy recognition. The offeror may use one of the methods prescribed in this paragraph only if the telephone number applies to each hazardous material entered on the shipping paper, and if it is indicated that the telephone number is for emergency response information (for example: "EMERGENCY CONTACT: \* \* \*").

(b) The telephone number required by paragraph (a) of this section must be -

(1) The number of the person offering the hazardous material for transportation when that person is also the emergency response information provider (ERI provider). The name of the person, or contract number or other unique identifier assigned by an ERI provider, identified with the emergency response telephone number must be entered on the shipping paper immediately before, after, above, or below the emergency response telephone number unless the name is entered elsewhere on the shipping paper in a prominent, readily identifiable, and clearly visible manner that allows the information to be easily and quickly found; or

(2) The number of an agency or organization capable of, and accepting responsibility for, providing the detailed information required by paragraph (a)(2) of this section. The person who is registered with the ERI provider must ensure that the agency or organization has received current information on the material before it is offered for transportation. The person who is registered with the ERI provider must be identified by name, or contract number or other unique identifier assigned by the ERI provider, on the shipping paper immediately before, after, above, or below the emergency response telephone number in a prominent, readily identifiable, and clearly visible manner that allows the information to be easily and quickly found, unless the name or identifier is entered elsewhere in a prominent manner as provided in paragraph (b)(1) of this section.

(c) A person preparing shipping papers for continued transportation in commerce must include the information required by this section. If the person preparing shipping papers for continued transportation in commerce elects to assume responsibility for providing the emergency response telephone number required by this section, the person must ensure that all the requirements of this section are met.

#### **Scope of Work:**

The established Emergency Response Information Provider must have an established chemical emergency response system that provides current information and comprehensive assistance in emergency situations involving hazardous materials (dangerous goods). The contract must fulfill the U.S. Department of Transportation's (DOT) mandate, which requires hazardous material shippers to provide a 24-hour, 7-day-a-week (24/7) emergency response telephone number on shipping papers.

#### **Tasks:**

NMFS requires an established Emergency Response Information service that provides the phone number that's monitored at all times by someone with immediate access to the knowledge of any and all hazardous material(s) and has comprehensive emergency and incident mitigation response information for those materials. The emergency response telephone number must also fulfill the requirement set forth by OSHA to have emergency contact information on (SDS) Safety Data Sheets. Established Emergency Response Information Provider Service requirements include:

- A. Provide USDOT and OSHA-compliant 24/7 emergency response telephone number that NMFS will place on all NMFS hazardous material shipping papers. The 24/7 emergency response telephone number will be utilized by NMFS for world-wide shipping and will be utilized by up to 40 separate NMFS facilities.
- B. Provide USDOT and OSHA-compliant 24/7 hotline assistance for Hazardous Materials Shipping, to include at the time an emergency call is received by the vendor, it must be immediately answered by qualified emergency response specialists. The vendor must proceed with an evaluation of the chemical emergency and will then disseminate all

information necessary, related to evacuation radius, fire-fighting procedures, incompatibility with other products, protective clothing requirements, and any other additional information needed. Should there be any injuries, the vendor shall communicate with nearby hospitals, where toxicologists and doctors will provide additional first aid information.

- C. Provide the government POC the required Department of Transportation (DOT) reporting form (F5800.1), which is required by the DOT to be submitted within 30 days of any hazardous substance or material release during transportation (including loading, unloading, and temporary storage related to transportation)

**Period of Performance:**

Base Year for a twelve month period 06/15/2026 to 06/14/2027.

Option Period 1 for a twelve month period 006/15/2027 to 06/14/2028.

Option Period 2 for a twelve month period 06/15/2028 to 06/14/2029.

Option Period 3 for a twelve month period 06/15/2029 to 06/14/2030.

Option Period 4 for a twelve month period 06/15/2030 to 06/14/2031.

**Place of Performance:**

All work shall be performed at the vendor's location, place of business.

**Deliverable Schedule:**

All Deliverables will be delivered to the Project Lead upon completion, unless otherwise stated.

| Deliverable | Description                                                                               | Completion Due Date                    |
|-------------|-------------------------------------------------------------------------------------------|----------------------------------------|
| III. A.     | Provide 24/7 emergency response telephone number service for up to 40 separate facilities | Performance Period start date          |
| III. B.     | Provide USDOT and OSHA-compliant 24/7 hotline assistance for Hazardous Materials Shipping | as required                            |
| III. C.     | Provide the required Department of Transportation (DOT) reporting form F5800.1            | within 30 days of the reportable event |

**Government-Furnished Resources:**

The Government will not furnish any resources to the Contractor in support of this contract.

| Services Contractor will work primarily:                                                   | On-Site | x Off-Site     |
|--------------------------------------------------------------------------------------------|---------|----------------|
| Services Contractor requires access to NOAA facilities:                                    | n/a     | x Not Required |
| Services Contractor requires a PIV or CAC:n/a                                              | n/a     | x Not Required |
| Services Contractor requires a NOAA email address:                                         | n/a     | x Not Required |
| Services Contractor requires use of DOC-Owned IT equipment (laptop or desktop computer)n/a | n/a     | x Not Required |
| Services Contractor requires non-Government IT equipment to connect to a DOC network:      | n/a     | x Not Required |
| Services Contractor requires access to non-public DOC/NOAA data:                           | n/a     | X Not Required |
| Services Contractor will be provided on-site office space with                             | n/a     | x Not Provided |

|                                                                                                                          |     |  |
|--------------------------------------------------------------------------------------------------------------------------|-----|--|
| incidental Government Property (desk, chair, phone, and other similar equipment that remains onsite, per FAR 45.000 (5)) |     |  |
| Description of other access or equipment requirements not already addressed above:                                       | n/a |  |

**Applicable Standards:**

The vendor must be OSHA certified.

**Special Requirements:**

## a. Confidentiality and Data Privacy

This contract may require that service contractors have access to Privacy Information. Service contractors are responsible for maintaining the confidentiality of all subjects and materials and may be required to sign and adhere to a Non-disclosure Agreement (NDA).

## b. Intellectual Property Rights

All deliverables are the property of the U.S. Government. All documents, analyses, files (digital or other), reports, notes, and photos are to be used only by Contractor personnel assigned to this purchase order. Documents, files, and other data are to be stored exclusively on government-owned equipment, and at no point should they be saved or archived on personal drives or devices. Copies are not to be disseminated to anyone outside of the NMFS or to any other contractor personnel without explicit release from the Government.

## c. IT Security

The contractor **will not** require access to Federal Buildings, DOC Systems and includes an IT component.

## d. Section 508 Compliance

Pursuant to Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d) as amended by P.L. 105-220 under Title IV (Rehabilitation Act Amendments of 1998), all Electronic and Information Technology (EIT) developed, procured, maintained and/or used under this contract shall be in compliance with the "Electronic and Information Technology Accessibility Standards" set forth by the Architectural and Transportation Barriers Compliance Board (also referred to as the "Access Board") in 36 CFR Part 1194. The complete text of Section 508 Standards can be accessed at <http://www.access-board.gov/> or at <http://www.section508.gov>.

**Inclusion of Clause 52.217-8:**

Inclusion of FAR clause 52.217-8, Option to Extend Services, is for use by the Government as outlined at FAR 37.111, Extension of Services. If an option is included, it will be exercised as needed at any time during the life of the contract using the rates applicable at the time of exercise. Evaluation of options will not obligate the Government to exercise the option(s).

**Evaluation Factors:**

The Government will issue an order resulting from this request for quotation to the responsible offeror whose quotation results in the best value to the Government, considering both price and non-price factors. The following factors will be used to evaluate quotations:

Factor 1--Technical Capabilities: Quotes need to detail how the Service meets all the requirements as noted above in the Statement of Work.

Factor 2--Past Performance: The offeror's past performance on related contracts will be evaluated to determine, as appropriate, successful performance of contract requirements, quality and timeliness of delivery of goods and services, effective management of subcontractors, cost management, level of communication between the contracting parties, proactive management, and customer satisfaction.

- Offeror shall provide at least three (3) past performance references. Provide Vendor name and contact name, address, phone number, cost, service period, and description of the project.

If a quoter has no relevant past performance, the quoter must affirmatively state that it possesses no relevant past performance history. Offerors who fail to either provide past performance information or affirmatively state that they have none may be considered non-compliant with the solicitation.

Factor 3 - Cost/Price: The proposed prices/costs will be evaluated. The cost evaluation will determine whether the proposed costs are realistic, complete, and reasonable in relation to the solicitation requirements. Proposed costs must be entirely compatible with the technical approach.

**Project Lead and Invoice Approver:**

Michael Walterschied

**CONTRACTORS INVOICE**

**INVOICES MUST BE SUBMITTED IN ARREARS**

**Per NAM 1330-52.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2023)**

The Contractor must submit payment requests electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP). The Contractor must use the IPP website to register, access, and submit payment requests. The IPP website address is <https://www.ipp.gov>.

"Payment request" means any request for contract financing payment or invoice payment to the Contractor. To be considered proper, invoices must be prepared in accordance with, and contain all elements specified in, the contract payment clause (e.g., FAR 52.212-4(g), FAR 52.232-25(a)(3), FAR 52.232-26(a)(2), FAR 52.232-27(a)(2)). All invoices are to be submitted in arrears per 31 U.S.C. § 3324. Advance payments are prohibited by 31 U.S.C. § 3324, which provides that, except as provided by a specific appropriation or other law, "a payment under a contract to provide a service or deliver an article for the United States Government may not be more than the value of the service already provided or the article already delivered." The primary purpose of 31 U.S.C. § 3324 is to protect the Government against the risk of nonperformance (or refusal to refund moneys) by the contractor after receipt of payment. See 22 Comp. Gen. 834, 835 (1946). In its simplest terms, the statute prohibits the Government from paying for goods before they have been received or for services before they have been rendered.

The Contractor must include the following documents as attachments to payment requests submitted through the IPP: The vendor's company invoice that includes the Purchase Order/Contract No., and the service period being billed. Attach the invoice to the [IPP.gov](https://www.ipp.gov) payment request.

If the Contractor is unable to comply with the requirement to submit payment requests through the IPP due to a threat to national security; a matter of unusual or compelling urgency; or because the political, financial, or communications infrastructure of a foreign country does not support access to the IPP, the Contractor must request an exception in writing. Contact the Contracting Officer for more information about requesting an exception. (End of Clause)



## Section IX - Contract Clauses

### Clauses Incorporated by Reference

| Clause Number | Clause Title                                                                                                   |
|---------------|----------------------------------------------------------------------------------------------------------------|
| 52.203-17     | Contractor Employee Whistleblower Rights. (NOV 2023)                                                           |
| 52.203-19     | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (JAN 2017)                 |
| 52.204-7      | System for Award Management-Registration. (NOV 2024) (Deviation JAN 2026)                                      |
| 52.204-13     | System for Award Management-Maintenance. (OCT 2018) (Deviation JAN 2026)                                       |
| 52.209-2      | Prohibition on Contracting With Inverted Domestic Corporations-Representation. (NOV 2015) (Deviation JAN 2026) |
| 52.209-10     | Prohibition on Contracting With Inverted Domestic Corporations. (NOV 2015) (Deviation JAN 2026)                |
| 52.212-4      | Terms and Conditions-Commercial Products and Commercial Services. (NOV 2023) (Deviation JAN 2026)              |
| 52.214-34     | Submission of Offers in the English Language. (APR 1991)                                                       |
| 52.219-4      | Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (OCT 2022) (Deviation JAN 2026)     |
| 52.219-28     | Postaward Small Business Program Rerepresentation. (JAN 2025) (Deviation JAN 2026)                             |
| 52.222-3      | Convict Labor. (JUN 2003) (Not for DOC Use)                                                                    |
| 52.222-19     | Child Labor-Cooperation with Authorities and Remedies. (JAN 2025) (Deviation JAN 2026)                         |
| 52.222-36     | Equal Opportunity for Workers with Disabilities. (JUN 2020) (Deviation JAN 2026)                               |
| 52.222-50     | Combating Trafficking in Persons. (OCT 2025) (Deviation JAN 2026)                                              |
| 52.226-8      | Encouraging Contractor Policies To Ban Text Messaging While Driving. (MAY 2024)                                |
| 52.232-18     | Availability of Funds. (APR 1984)                                                                              |
| 52.232-33     | Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)                                 |
| 52.232-40     | Providing Accelerated Payments to Small Business Subcontractors. (MAR 2023)                                    |
| 52.233-3      | Protest after Award. (AUG 1996) (Deviation JAN 2026)                                                           |
| 52.233-4      | Applicable Law for Breach of Contract Claim. (OCT 2004) (Deviation JAN 2026)                                   |
| 52.240-90     | Security Prohibitions and Exclusions Representations and Certifications. (Deviation JAN 2026)                  |
| 52.240-91     | Security Prohibitions and Exclusions. (Deviation JAN 2026)                                                     |
| 52.249-1      | Termination for Convenience of the Government (Fixed-Price) (Short Form). (APR 1984)                           |
| 1352.201-70   | Contracting Officer's Authority. (MAR 2010)                                                                    |
| 1352.209-73   | Compliance with the laws. (APR 2010)                                                                           |
| 1352.209-74   | Organizational conflict of interest. (APR 2010)                                                                |

**Standard Language UTILIZATION OF FEDCONNECT FOR CONTRACT ADMINISTRATION**

The Department of Commerce will utilize the FedConnect® web portal in administering this award. The contractor must be registered in FedConnect® and have access to the FedConnect® website located at <https://www.fedconnect.net/Fedconnect/>. For assistance in registering or for other FedConnect® questions please call the FedConnect® Help Desk at (800) 899-6665 or email at [support@fedconnect.net](mailto:support@fedconnect.net). There is no charge for registration in or use of FedConnect®.

**CAR 1352.215-72 Inquiries. (APR 2010)**

Offerors must submit all questions concerning this solicitation in writing to [raynier.camerino@noaa.gov](mailto:raynier.camerino@noaa.gov). Questions should be received no later than eight (8) calendar days after the issuance date of this solicitation. Any responses to questions will be made in writing, without identification of the questioner, and will be included in an amendment to the solicitation. Even if provided in other form, only the question responses included in the amendment to the solicitation will govern performance of the contract.

(End of clause)

**CAR 1352.233-70 Agency protests. (APR 2010)**

(a) An agency protest may be filed with either: (1) The contracting officer, or (2) at a level above the contracting officer, with the appropriate agency Protest Decision Authority. See 64 FR 16,651 (April 6, 1999).

(b) Agency protests filed with the Contracting Officer shall be sent to the following address:

Attn: Branch Chief  
MB Field Delegates, Acq. Services Division  
1315 East West Highway, Floor 14  
Silver Spring, MD 20910

(c) Agency protests filed with the agency Protest Decision Authority shall be sent to the following address:

Barry Berkowitz  
Senior Procurement Executive and Director, Office of Acquisition Management  
U.S. Department of Commerce Room 6422  
Herbert C. Hoover Building  
14th Street and Constitution Avenue, N.W.  
Washington, D.C. 20230  
FAX: 202-482-1711

(d) A complete copy of all agency protests, including all attachments, shall be served upon the Contract Law Division of the Office of the General Counsel within one day of filing a protest with either the Contracting Officer or the Protest Decision Authority.

(e) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C.



Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

**CAR 1352.233-71 GAO and Court of Federal Claims protests. (APR 2010)**

(a) A protest may be filed with either the Government Accountability Office (GAO) or the Court of Federal Claims unless an agency protest has been filed.

(b) A complete copy of all GAO or Court of Federal Claims protests, including all attachments, shall be served upon (i) the Contracting Officer, and (ii) the Contract Law Division of the Office of the General Counsel, within one day of filing a protest with either GAO or the Court of Federal Claims.

(c) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

**CAR 1352.270-70 Period of performance. (APR 2010)**

(a) The base period of performance of this contract is from 06/15/2026 through 06/14/2027. If an option is exercised, the period of performance shall be extended through the end of that option period.

(b) The option periods that may be exercised are as follows:

| Option Period | Start Date | End Date   |
|---------------|------------|------------|
| Option Year 1 | 06/15/2027 | 06/14/2028 |
| Option Year 2 | 06/15/2028 | 06/14/2029 |
| Option Year 3 | 06/15/2029 | 06/14/2030 |
| Option Year 4 | 06/15/2030 | 06/14/2031 |

(c) The notice requirements for unilateral exercise of option periods are set out in FAR 52.217-9.

(End of clause)

**NOAA Acquisition Manual 1330-52.222-70 NOAA SEXUAL ASSAULT AND SEXUAL HARASSMENT PREVENTION AND RESPONSE POLICY (MAY 2018)**

In accordance with NOAA Administrative Order (NAO) 202-1106, NOAA Sexual Assault and Sexual Harassment Prevention and Response Policy, it is the policy of NOAA to maintain a work environment free from sexual assault and sexual harassment. NOAA prohibits sexual assault and sexual harassment by or of any employee, supervisor, manager, contractor, vendor, affiliate, or other individual with whom NOAA employees come into contact by the virtue of their work for NOAA.

## (a) Definitions.

**Contractor Employees** - The term “contractor employees,” as used in this solicitation and contract language, refers to employees of the prime contractor or its subcontractors, affiliates, consultants, or team members.

**Sexual Assault** - The term sexual assault, as used in this solicitation and contract language, means any conduct proscribed by state or federal sexual abuse laws, including, but not limited to, those defined in chapter 109A of title 18 of the U.S. Code (sexual abuse), and assaults committed both by offenders who are strangers to the victim and by offenders who are known or related by blood or marriage to the victim.

**Sexual Harassment** - As defined by the Equal Employment Opportunity Commission, sexual harassment is a form of sex discrimination that violates Title VII of the Civil Rights Act of 1964. It includes unwelcome sexual advances, requests for sexual favors, and other verbal, non-verbal, or physical conduct of a sexual nature when any of the following are true:

- Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment;
- Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual;
- The conduct unreasonably interferes with an individual's work performance or creates an intimidating, hostile, or offensive working environment.

The main characteristics of sexual harassment are that the harasser's conduct is targeted against the recipient's sex, gender identity, or sexual orientation, and is unwelcome to the recipient. It may include, but is not limited to: offensive jokes, slurs, epithets or name calling, undue attention, physical assaults or threats, unwelcome touching or contact, intimidation, ridicule or mockery, insults or put-downs, constant or unwelcome questions about an individual's identity, and offensive objects or pictures.

## (b) Requirements.

1. It is the responsibility of the contractor to ensure that contractor employees maintain the highest degree of conduct and standards in performance of the contract. In support of this, NOAA urges its contractors to develop and enforce comprehensive company policy addressing sexual assault and sexual harassment.
2. The contractor shall include wording substantially the same as this solicitation and contract language in every subcontract so that it is binding upon each subcontractor.
3. If a contractor employee observes or is the object of sexual assault or sexual harassment, he or she is highly encouraged to report the matter, as soon as possible, to their immediate supervisor, the COR, subset of the COR (e.g. Task Manager or Assistant COR), or contracting officer (CO) if a COR is not assigned to the contract. The contract employee may also contact the NOAA Civil Rights Office to obtain guidance on reporting instances of sexual assault or sexual harassment. If deemed necessary, the contractor employee may also report such instances to local law enforcement. In the case where the incident occurs while performing at a remote location, such as at sea or in the field (at a field camp or

other isolated location) where the above referenced individuals are unavailable, the contractor employee should follow the reporting procedure set forth in NAO 202-1106, Section 6.07, Reporting from Remote Locations.

4. Swift reporting allows NOAA and the contractor to take the appropriate measures to ensure that offensive behavior stops and the complainants' needs are addressed.

5. The COR (if assigned), CO, and contractor, where applicable, will work together to ensure appropriate action is taken in accordance with applicable laws and regulations, contract terms and conditions, and the contractor's written policy (where applicable).

6. The contractor shall provide all contractor employees assigned to perform under this contract with mandatory sexual assault and sexual harassment prevention and response training in compliance with the requirements of NAO 202-1106, Section 5, Prevention Training and Awareness, as part of their initial in-processing and on an annual basis thereafter. The initial training shall be completed within [ ] business days (30 unless a different number is inserted) of contract award or the date a contractor employee is assigned to perform under the contract, as applicable.

Evidence of initial training by name and date completed for each contractor employee, shall be submitted to the COR or contracting officer (if no COR assigned) within 10 business days of completion.

Evidence of annual training by name and date completed for each contractor employee shall be submitted to the COR or contracting officer (if no COR assigned) no later than March 1st of each calendar year of contract performance.

7. The mandatory sexual assault and sexual harassment training provided by the contractor shall include the required elements set forth by NOAA's Workplace Violence Program Manager. A link to the website including the required elements of the training is provided at <https://www.noaa.gov/organization/acquisition-grants/noaa-workplace-harassment-training-for-contractors-and-financial>. The website will also provide training materials and resources to assist the contractor in conducting the training. The contractor may provide training that solely addresses the NOAA required elements or may supplement existing company sexual assault and sexual harassment training in a manner that ensures all of the elements are adequately addressed.

8. The required elements of the training and resources available to the contractor for the training may be updated by NOAA periodically. The contractor is responsible for monitoring the website and incorporating any changes to the NOAA required elements into the contractor provided training.

9. NOAA's Workplace Violence Program Manager, COR, or CO may periodically review the contractor's training outline to ensure all required elements are included and, if necessary, any appropriate adjustments are made to the training by the contractor.

10. Contractor employees performing on assignments in a remote location, such as at a field camp or other isolated locations, are subject to receiving the same briefing on the parameters of the order provided to NOAA employees as set forth in Section 6 of NAO 202-1106.

11. The contractor shall provide a copy of this solicitation and contract language and NAO 202-1106 to contractor employees.

## (c) Sexual Assault/Sexual Harassment (SASH) Helpline.

For NOAA employees, affiliates, and contractors who have experienced sexual assault or sexual harassment, NOAA has established the NOAA Sexual Assault/Sexual Harassment (SASH) helpline. This helpline is designed to provide crisis intervention, referrals, and emotional support to those who are victims and/or survivors of sexual harassment or sexual assault within the workplace. Contractor employees may use the helpline to receive live, confidential, one-on-one support in an occurrence of sexual harassment or assault by a Federal Government employee.

All services are anonymous, secure, and available worldwide, 24 hours a day, seven days a week. The NOAA SASH helpline is accessible through a variety of channels, including:

- Phone: 1-866-288-6558
- Website & Online Chat: <https://www.noasashhelpline.org/>
- Mobile App: NOAA SASH Helpline (available via iOS and Android App Stores)
- Text: (202) 335-0265

## (d) Confidentiality.

Any party receiving information from the filing of a complaint alleging sexual assault or sexual harassment, or while performing an investigation into such a complaint, shall keep the information confidential. "Confidentiality" means that the information shall only be shared with others who have a need to know the information to conduct their official duties.

## (e) Remedies.

In addition to other remedies available to the Government, contractor employee violations of Federal requirements (e.g., law, statutes, executive orders, code, rules, regulations) applicable to sexual assault and sexual harassment and/or failure to complete the mandatory training set forth in this solicitation and contract language, may result in:

1. Requiring the contractor to remove a contractor employee or employees from the performance of the contract;
2. Requiring the contractor to terminate a subcontract;
3. Suspension of contract payments until the Contractor has taken appropriate remedial action;
4. Termination of the contract for default or cause, in accordance with the termination clause of this contract;
5. Suspension or debarment; or
6. Other appropriate action.

(End of solicitation and contract language)

## **NOAA Acquisition Manual 1330-52.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2023)**

The Contractor must submit payment requests electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP). The Contractor must use the IPP website to register, access, and submit payment requests. The IPP website address is <https://www.ipp.gov>.

"Payment request" means any request for contract financing payment or invoice payment to the Contractor. To be considered proper, invoices must be prepared in accordance with, and contain all elements specified in, the contract payment clause (e.g., FAR 52.212-4(g), FAR 52.232-25(a)(3), FAR 52.232-26(a)(2), FAR 52.232-27(a)(2)).

The Contractor must include the following documents as attachments to payment requests submitted through the IPP: The vendor's invoice attached to the IPP.gov submission.

If the Contractor is unable to comply with the requirement to submit payment requests through the IPP due to a threat to national security; a matter of unusual or compelling urgency; or because the political, financial, or communications infrastructure of a foreign country does not support access to the IPP, the Contractor must request an exception in writing. Contact the Contracting Officer for more information about requesting an exception.

(End of solicitation and contract language)

## **NOAA Acquisition Manual 1330-52.237-70 CONTRACTOR COMMUNICATIONS**

(a) A contractor employee shall be identified both by the individual's name and the contractor's name when:

- Included in NOAA's locator, and
- When submitting any type of electronic correspondence to any NOAA employee or stakeholder.

(b) Any written correspondence from a contractor or any contractor employee shall be printed on company/organization letterhead or otherwise clearly identify the sender as an employee of the company or organization and shall identify the contract number.

(c) Contractors and/or contractor employees shall clearly identify themselves as such in any verbal communications, whether in informal discussion or a formal meeting.

(End of solicitation and contract language)

## **NOAA Acquisition Manual 1330-52.237-71 NOAA GOVERNMENT-CONTRACTOR RELATIONS - NON-PERSONAL SERVICES CONTRACT (SEPT 2017)**

(a) The Government and the contractor understand and agree that the services to be delivered under this contract by the contractor to the Government are non-personal services as defined in FAR Part 37, Service Contracting, and the parties recognize and agree that no employer-employee relationship exists or will exist under the contract between the Government and the contractor's personnel. It is, therefore,

in the best interest of the Government to afford both parties an understanding of their respective obligations.

(b) Contractor personnel under this contract shall not:

1. Be placed in a position where they are under relatively continuous supervision and control of a Government employee.
2. Be placed in a position of command, supervision, administration, or control over Government personnel or over personnel of other contractors performing under other NOAA contracts.

(c) The services to be performed under this contract do not require the contractor or the contractor's personnel to exercise personal judgment and discretion on behalf of the Government. Rather, the contractor's personnel will act and exercise personal judgment and discretion on behalf of the contractor.

(d) Rules, regulations, directives, and requirements that are issued by the Department of Commerce and NOAA under its responsibility for good order, administration, and security are applicable to all personnel who enter the Government installation and facilities, who are provided access to Government systems, or who travel on Government transportation. This is not to be construed or interpreted to establish any degree of Government control that is inconsistent with a non-personal services contract.

(e) Both parties are responsible for monitoring contract activities for indications of improper employee-employer relationships during performance. In the event a situation or occurrence takes place inconsistent with this contract language, the following applies:

1. The contractor shall notify the contracting officer in writing within 5 business days from the date of any situation or occurrence where the contractor considers specific contract activity to be inconsistent with the intent of this contract language. The notice must include the date, nature and circumstance of the situation or occurrence, the name, function and activity of each Government employee or contractor employee involved or knowledgeable about the situation or occurrence, provide any documents or the substance of any oral communications related to the activity, and an estimated date by which the Government is recommended to respond to the notice in order to minimize cost, delay, or disruption of performance.
2. The contracting officer will review the information provided by the contractor, obtain additional information (if needed), and respond in writing as soon as practicable after receipt of the notification from the contractor. The contracting officer's response will provide a decision on whether the contracting officer determines the situation or occurrence to be inconsistent with the intent of this contract language and, if deemed necessary, will specify any corrective action(s) to be taken in order to resolve the issue.

(End of solicitation and contract language)

**RFO 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (FEB 2016) (Deviation JAN 2026)**

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is \_\_\_ is not \_\_\_ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is \_\_\_ is not \_\_\_ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

**RFO 52.212-1 Instructions to Offerors-Commercial Products and Commercial Services. (SEP 2023)  
(Deviation JAN 2026)**

NOTICE TO OFFERORS: Instructions for submitting quotations under this request for quote must be followed. Failure to provide all information to aid in the evaluation may be considered non-responsive. Offers that are non-responsive may be excluded from further evaluation and rejected without further notification to the offeror.

1. Submit PDF or Microsoft Word format quotations to the office specified in this solicitation at or before the time specified in the solicitation. Quote documents shall include signed copies of the SF 18 and SF 30(s) to acknowledge the solicitation and any applicable amendments. Email quotes are required and can be sent to [raynier.camerino@noaa.gov](mailto:raynier.camerino@noaa.gov).
  2. Offeror shall have an active registration in the System for Award Management (SAM found at <https://sam.gov/content/home>) in order to provide a quote and be eligible for award. Must provide their UEID/CAGE CODE with their quote.
  3. Offerors shall assume that the Government has no prior knowledge of them or their capability.
  4. Offerors must provide all evaluation criteria in accordance with RFO 52.212-2. Offerors who do not provide all evaluation criteria may not be considered.
- Factor 1--Technical Capabilities  
Factor 2--Past Performance  
Factor 3 - Cost/Price

(End of provision)

**RFO 52.212-2 Evaluation-Commercial Products and Commercial Services. (NOV 2021) (Deviation JAN 2026)**

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

The Government will issue an order resulting from this request for quotation to the responsible offeror whose quotation results in the best value to the Government, considering both price and non-price factors. The following factors will be used to evaluate quotations:

Factor 1--Technical Capabilities: Quotes need to detail how the Service meets all the requirements as noted above in the Statement of Work.

Factor 2--Past Performance: The offeror's past performance on related contracts will be evaluated to determine, as appropriate, successful performance of contract requirements, quality and timeliness of delivery of goods and services, effective management of subcontractors, cost management, level of communication between the contracting parties, proactive management, and customer satisfaction.

- Offeror shall provide at least three (3) past performance references. Provide Vendor name and contact name, address, phone number, cost, service period, and description of the project.

If a quoter has no relevant past performance, the quoter must affirmatively state that it possesses no relevant past performance history. Offerors who fail to either provide past performance information or affirmatively state that they have none may be considered non-compliant with the solicitation.

Factor 3 - Cost/Price: The proposed prices/costs will be evaluated. The cost evaluation will determine whether the proposed costs are realistic, complete, and reasonable in relation to the solicitation requirements. Proposed costs must be entirely compatible with the technical approach.

The Government intends to award a trade-off, single firm fixed-price purchase order on an all-or-none basis with payment terms of Net 30.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).



(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

**RFO 52.217-5 Evaluation of Options. (JUL 1990) (Deviation JAN 2026)**

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

This includes options under FAR clause 52.217-8, Option to Extend Services, which applies to this solicitation. Evaluation of options will not obligate the Government to exercise the option(s).

**RFO 52.217-8 Option To Extend Services. (NOV 1999)**

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 day prior to expiration of the contract.

(End of clause)

Inclusion of FAR clause 52.217-8, Option to Extend Services, in the solicitation and resultant contract is for use by the Government as outlined at FAR 37.111, Extension of Services. The option will be exercised as needed at any time during the life of the contract using the rates applicable at the time of exercise.

**RFO 52.217-9 Option To Extend the Term of the Contract. (MAR 2000)**

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day prior to the expiration of the contract; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 5 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years and 6 month.

(End of clause)

**RFO 52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of provision)

**RFO 52.252-2 Clauses Incorporated by Reference. (FEB 1998)**

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of clause)

**RFO 52.252-5 Authorized Deviations in Provisions. (NOV 2020)**

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any Commerce Acquisition Regulation (48 CFR chapter 1352) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

**RFO 52.252-6 Authorized Deviations in Clauses. (NOV 2020)**

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any Commerce Acquisition Regulations (48 CFR 1352) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)